

time (*b*), he will be a trustee of such lands to the extent of the charge. And even if a person engages on his marriage to settle *all* the *personal* estate that he may acquire during the coverture, the trusts upon which it is so agreed the personalty shall be settled will fasten upon the property as it falls into possession; and if the money has been laid out in a purchase, it may be followed into the land (*c*). But if a person covenant to settle such property as he shall *die seised of*, he may dispose of his property as he pleases in his lifetime, and the covenant will affect only such property as he may leave after payment of his just debts (*d*); and if a person covenant to secure an annuity, *either* by a charge on freeholds, *or* by investment in the funds, *or* by the best means in his power, it will not create a charge on the covenantor's property generally (*e*).

20. **Contract for sale.**—Again, if a person contract to sell another an estate, the vendor has impliedly declared himself a trustee in fee for the purchaser, and is accountable to him for the rents and profits (*f*); and if the tenants have been allowed improperly to run in arrear (*g*), or there has been unhusbandlike farming (*h*), or any other injury done, either by the wilful waste or neglect of the vendor (*i*), he is answerable to the purchaser as for a breach of trust. On the other hand, if any damage arise to the estate, not by

& C. 561. As to the proper construction of the particular covenant in that case, see *Countess of Mornington v. Keane*, 2 De G. & J. 293.

(*b*) *Lyster v. Burroughs*, 1 Drury & Walsh, 149; *Stack v. Royse*, 12 Ir. Ch. Rep. 246; [*Cleary v. Fitzgerald*, 7 L. R. Ir. 229.]

(*c*) *Lewis v. Madocks*, 8 Ves. 150; S. C. 17 Ves. 48; [*Galavan v. Dunne*, 7 L. R. Ir. 144. But in case of the settlor's bankruptcy, see 46 & 47 Vict. c. 52, s. 47; *Ex parte Bolland*, 17 L. R. Eq. 115.]

(*d*) *Rowan v. Chute*, 13 Ir. Ch. Rep. 168; *Re McKenna*, ib. 239; *Nayler v. Wetherall*, 12 Jan. 1831; affirmed 23 Jan. 1833 (MS.); where the covenant was to settle all the real and personal

estate which he should be seised or possessed of at the time of his death, and it was declared that the covenant bound all the real and personal estate which he had power to dispose of by will.

(*e*) *Countess of Mornington v. Keane*, 2 De G. & J. 292; and see *Stock v. Moyse*, 12 Ir. Ch. Rep. 246.

(*f*) See *Acland v. Gaisford*, 2 Mad. 32; *Wilson v. Clapham*, 1 J. & W. 38.

(*g*) *Acland v. Gaisford*, 2 Mad. 28.

(*h*) *Ferguson v. Tadman*, 1 Sim. 530; *Foster v. Deacon*, 3 Mad. 394.

(*i*) *Wilson v. Clapham*, 1 J. & W. 39.